

TENTATIVE RULINGS

People of the State of California

v.

US Automotive Protection Services LLC, et al.
24CV004130

[Plaintiff's Motion to Deem Admitted Requests for Admission to Defendants](#)

[Plaintiff's Motion for Terminating Sanctions Against Defendants](#)

Hearing Date: August 7, 2026

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Plaintiff's Motion to Deem Admitted Requests for Admission to Defendants

On October 9, 2025, the People of the State of California ("Plaintiff") served its first set of Requests for Admission ("RFA") to Defendant US Automotive Protection Services LLC ("USAPS"). [Hickok Decl. at ¶¶ 3-6 and Exh. 1.] Despite a court order requiring their submission, USAPS has not provided verified further responses to RFAs 3-4, 6-9, 11, and 20-36. [*Id.* at ¶¶ 7-10 and Exs. 2-3.] Likewise, Defendant Brandon Schrader did not respond to RFAs sent on April 9, 2026. [*Id.* at ¶¶ 11-14.] Neither USAPS nor Mr. Schrader has responded to Plaintiff's RFA or opposed Plaintiff's deemed-admitted motion. [*Id.* at ¶¶ 10, 12-14.] Therefore, the unopposed motion is **GRANTED**.

Legal Standard.

The initial penalty for a party's failure to respond promptly to an RFA is a waiver of any objection to the requests, including those based on privilege or work product protection. [Code Civ. Proc. § 2033.280, subd. (a).] Failing to respond to an RFA does not automatically mean admissions. Instead, the propounding party must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" under Code of Civil Procedure section 2033.010 et seq. [Code Civ. Proc. § 2033.280, subd. (b).] Specifically, a "court shall" grant a motion to deem request for admission contentions admitted, "unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." [Code Civ. Proc. § 2033.280, subd. (c).]

Discussion.

On April 22, 2026, the Court ordered USAPS to serve verified further responses to RFAs 3-4, 6-9, 11, and 20-36 within 15 days of receiving the Court's order. On April 30, 2026, Plaintiff mailed the order to USAPS. Despite 14 weeks passing, USAPS has not provided any responses. Additionally, USAPS has not opposed this motion. According to Code of Civil Procedure section 2033.290, subdivision (e), these matters are considered admitted due to USAPS's failure to follow the Court's motion-to-compel order. As a result, the Court **GRANTS** this motion, and RFAs 3-4, 6-9, 11, and 20-36 are **DEEMED ADMITTED** for USAPS.

Mr. Schrader did not provide any verified responses to Plaintiff's RFA, served on April 9, 2026. [Hickok Decl. at ¶ 11 and Exh. 4.] Mr. Schrader's failure to serve timely responses requires the Court to deem the RFAs admitted unless substantially compliant responses are served before the hearing. [Code Civ. Proc. § 2033.280.] No opposition has been filed, and no responses have been received. [Hickok Decl. at ¶¶ 12-14.] Accordingly, Plaintiff's Motion is **GRANTED**, and RFAs 1-62 are **DEEMED ADMITTED** as to Mr. Schrader.

Conclusion.

As stated above, Plaintiff's deemed-admitted motion is **GRANTED**. The Court will sign the Proposed Order accompanying the motion.

Plaintiff's Motion for Terminating Sanctions Against Defendants

The People of the State of California ("Plaintiff") seek an order that imposes terminating sanctions against US Automotive Protection Services LLC ("USAPS"), Brandon Schrader, and Michelle Schrader (collectively, "Defendants") for their discovery abuses and repeated failures to comply with this Court's orders and participate in this litigation. [Code Civ. Proc. §§ 575.2, 2023.030; Super. Ct. Monterey County, Local Rules, rules 6.7 and 6.9.] Alternatively, Plaintiff seeks a six-month continuance of the trial and discovery deadlines. [Notice of Motion at 2:16-18.] Plaintiff's terminating-sanctions motion is **GRANTED**, thus mooted their other request.

Plaintiff requests terminating sanctions against Defendants due to their deliberate refusal to comply with court orders and their failure to participate in discovery. [Hickok Decl. at ¶¶ 1-38.] On June 3, 2026, this Court sanctioned Mr. and Ms. Schrader with a \$500 fine for their repeated failures to appear. That same day, the Court issued an additional OSC, stating that it may impose further sanctions, including monetary and terminating sanctions, for their failure to appear at the May 29, 2026, hearing. Defendants have not filed any opposition to this motion. Mr. and Ms. Schrader have also not responded to the OSCs.

The court may impose a terminating sanction against a party who misuses the discovery process when authorized for a specific discovery method. [Code Civ. Proc. § 2023.030.] These sanctions include an order striking the pleadings of the offending party and an order entering judgment by default against that party. [Code Civ. Proc. § 2023.030, subds. (d)(1) and (4).] Terminating sanctions are allowed for discovery violations involving noncompliance with discovery orders. [See Code Civ. Proc. §§ 2023.010, 2023.030, 2025.450, subd. (h), 2030.290 subd. (c), and 2031.310 subd. (i).] "A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights." [*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.]

The record shows that Defendants have repeatedly and intentionally misused the discovery process by failing to: (1) respond to discovery; (2) comply with multiple court orders demanding discovery; (3) pay previously ordered monetary sanctions; (4) appear at case management conferences and OSC hearings; and (5) participate in meet-and-confer efforts. [Hickok Decl. at ¶¶ 1-38; OSCs issued on 4/20/26 and 6/3/26.] The Court finds that lesser sanctions have been attempted and failed. Defendants have ignored their discovery obligations and court orders without providing any justification. A terminating sanction is appropriate when violations are deliberate, part of a pattern of abuse, and lesser sanctions have proven ineffective. [Code Civ. Proc. § 2023.030, subd. (d); see *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701-702.]

The Court therefore **GRANTS** Plaintiff's motion, and **STRIKES** Defendants' Answer filed November 20, 2024. The Clerk is directed to **ENTER DEFAULT** against all three defendants. This matter is set for a default prove-up hearing on November 10, 2026, at 10 a.m. in Department 14. The Court will revise and sign the Proposed Order accompanying the motion.